

ACADEMIC FREEDOM AND PERCEPTIONS OF HARM



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Something very wrong has happened at the University of Alberta. A professor has been fired from part of her academic job for views on sex and gender that break with current orthodoxy.

In late March, Kathleen Lowrey, an associate professor at the University of Alberta, was asked to resign from her role as the Department of Anthropology's associate chair, undergraduate programs, on the basis that one or more students had gone to the University's Office of Safe Disclosure and Human Rights and the Dean of Students, André Costopolous, to complain about her without filing formal complaints. All Professor Lowrey has been told is that she is somehow making the learning environment "unsafe" for these students because she is a feminist who holds "gender critical" views.

Apparently, Lowrey's very openness about her views is a problem. Should a course have gender or sex as a central theme, on day 1 she offers a summary of her views along with the declaration that no student need agree with her about any of it, as she did this year with her course "Anthropology of Women." As she cleaves to a feminism that asserts the continuing importance of biological sex and feminist projects of resisting patriarchal oppression, her views put her out of step with much current thinking about the nature of gender, which from the seminal work of Judith Butler forward takes sex to be a social

construct. Lowrey also posts statements related to her views on her office door — something she is entitled to do. She contends that in asking her to resign from her service role the University is endorsing ideological conformity.

Lowrey refused to resign from her service role and insisted that if the University wished to dismiss her from it, it would need to put its reasons for doing so in writing. She subsequently received a letter from the Dean of Arts Lesley Cormack dismissing her from her service role without offering any specifics as to why. The letter simply declares that the Dean believes that “it is not in the best interests of the students or the University” for Lowrey to continue in it.

Having been disciplined without any concrete charges presented to her, Lowrey refers to what is happening to her as “McCarthyite.” As she has been confronted not with any specific complaint, but only with the broad claim that her views constitute an amorphous “harm,” we might find *ex officio* proceedings during the English Reformation an equally apt analogy for what she is experiencing; *ex officio* proceedings permitted those accused of supposedly heretical beliefs to be excommunicated, sometimes even executed, on the basis of secret disclosures to ecclesiastical judges of evidence never made public. Whichever analogy you prefer, this kind of disciplinary action against a professor, in which administrators refuse to offer any specific charges in relation to student complaints about a professor’s ideas, is inappropriate at a university in a democratic country twenty years into the twenty-first century.

At its most alarming, the University of Alberta’s position appears to be that where students have a “perception” that an idea or a set of ideas harms them, it does not matter what the precise complaints are in regard to the person holding the ideas (or indeed whether there is any precise complaint). Lowrey has been expressly told that it doesn’t matter if any of the claims students are making about her are true.

It gets worse. The Dean of Arts takes the position that the University has an obligation to balance two things: a professor’s academic freedom and students’ right to a “safe” learning environment. This is wrong. There is no such thing as a “safe” learning environment if “safe”

means not having to encounter views with which you disagree. The work of a university cannot flourish where students can claim that, unless a professor holds a position of which they approve, they are harmed. A university must be the place of a full and inclusive heterodoxy, not a place where any idea is marginalized or suppressed because it is deemed something other than “right.” A university is, furthermore, the last place where anyone should be rejecting the free of expression of ideas in the name of the “safe.” At a university, it is essential to the academic mission that controversial ideas are subject to open contest, debate, criticism, and analysis. The very fact, as Professor Lowrey has noted to the Dean of Arts, that a climate that one person finds “safe” may very well be perceived as “unsafe” by another, makes the lexicon of the “safe” and the “unsafe” entirely inappropriate to universities.

The idea that in a hush behind closed doors students can bring complaints that don’t have to be proven true and can do so in order to protect their “safety” should alarm us all. Processes for safe disclosure are absolutely essential to dealing with claims of sexual violence or any form of harassment, but they are put to improper use when they are used to cut off discussion and critical evaluation of ideas. A university that supports a culture of this kind of complaint quietly devastates the academy from the inside out.

A university culture, moreover, in which students may complain about professors’ ideas behind closed doors and get professors pulled from their service or other academic roles based on their disliking of a faculty member’s intellectual viewpoint is one that is fomenting intolerance rather than meeting the university’s commitment to critical thinking, intellectual engagement, and the advancement of knowledge.

It is also an offense against academic freedom for a university administrator to take the position that a professor has academic freedom, including the expressive rights of all citizens, only in relation to the teaching and research aspects of their job. The Dean of Arts’ view is that, while the University of Alberta will leave Professor Lowrey entirely free to teach and research what she wishes, it has the right to pull her from a service role because students dislike some of her ideas. Academic freedom applies, however, to all aspects of a professor’s work, including their service. (A professor’s work is conventionally defined as

40% teaching, 40% research, and 20% service, with the service usually involving assistance in running a professor's home department.) Universities are not to be "run" only by those who hold approved ideas or eschew ideas that unsettle.

There are two other disturbing facets to this unfortunate incident.

The University of Alberta takes the position that Lowrey had to be dismissed from her service role "for the good of the department" because at least one student claims that for the University to let her continue in the role would be for it to run the risk of the department losing students to another field of study. The argument, in effect, is that Lowrey could not be allowed to let the Department suffer a financial penalty for her views. (In the University of Alberta's budget model, government funding "follows" students to the departments in which they take their courses.) With its worry that Lowrey's views will have financial consequences for the Department of Anthropology, the University of Alberta lets an unfortunate development of the academy over the last few decades, in which students have become tuition-paying "customers" upon whom universities rely for more and more of their revenues, come into direct conflict with academic freedom principles. This is a very serious problem. No department at any university in Canada should be taking the position that it has to concern itself with how a professor's intellectual views may affect a department's bottom-line.

Finally, the University of Alberta takes the position that it had to dismiss Lowrey from her service role because if it did not do so students would feel that the University "cared more" about "supporting" the professor than it did about them. This is a terrible line of reasoning, which pits students against a professor when what ought to be of paramount concern to all is the commitment to intellectual engagement and critical scrutiny of ideas as fundamental to the University's flourishing. Quite simply, at a university, unorthodox or controversial views must be actively debated, and never suppressed, if the university is to meet its societal obligations.

The University of Alberta needs to restore Professor Lowrey to her role as associate chair, undergraduate programs, in the Department of Anthropology, and university administrators

elsewhere need to make sure that they do not fall into the University of Alberta's mistake. It is essential that our universities never become homes for orthodoxy of any kind. "Dogma is bad for people," writes UBC professor emeritus William Bruneau elsewhere on [this blog](#). But for universities dogma is much, much worse. It is anathema to the academic mission.



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Academic Freedom